

Imran Ahmad v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 22 February 2018 · Writ - C No. 26191 of 2015 · **Writ petition dismissed on the ground of alternative remedy. No regular electricity bill being under challenge, the Court found no provision under which the impugned demand notice - a consequential action under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 to realise dues of Rs.3,69,896 on the regular bills - could be challenged; against the demand on the regular bills no objection had been filed and the amount had not been deposited, so recovery was validly initiated. Any grievance towards the electricity dues lies before the District Redressal Forum under Clause 5.12 of the U.P. Electricity Supply Code, 2005, and, that remedy being available, the Court declined to interfere.**

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HEADNOTE

The petitioner, a consumer of the U.P. distribution licensee, challenged a demand notice dated 30 March 2015 by which Rs.3,69,896 was sought to be recovered as electricity dues under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, contending that he had already deposited the Rs.56,960 called for by the electricity bill dated 25 February 2015. The matter ran as an order-sheet from 2015 to 2018 under interim protection against recovery, being repeatedly adjourned. On final hearing a Division Bench of the Allahabad High Court dismissed the writ petition. It held that no regular electricity bill was under challenge and that it found no provision under which the demand notice - which is nothing but a consequential action informing the consumer to pay the electricity dues pursuant to the regular bills - could be challenged; against the demand raised on the regular bills no objection had been filed and the amount had not been deposited, so recovery proceedings had rightly been initiated. It further held that if the petitioner had any grievance towards the electricity dues he had a statutory alternative remedy before the District Redressal Forum under Clause 5.12 of the U.P. Electricity Supply Code, 2005, and, that remedy being available, there was no reason to interfere. The petition was accordingly dismissed on the ground of alternative remedy.

FACTUAL SUMMARY

Imran Ahmad, a consumer served by the U.P. Power Corporation/distribution licensee, filed Writ - C No. 26191 of 2015 before the Allahabad High Court challenging a demand notice dated 30 March 2015 by which Rs.3,69,896 was sought to be recovered as electricity dues. According to the petitioner, the electricity bill dated 25 February 2015 had required him to pay Rs.56,960, which he deposited, yet the impugned demand notice for the far larger sum followed. The recovery was pressed under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 (named in the order as the 'Recovery of Dues Act, 1998'), the Executive Engineer having required payment by 30 March 2015. The petition proceeded as an order-sheet across many dates: on 20 May 2015 the Court granted interim protection directing that no recovery be made pending the next date, and that interim order was repeatedly extended through 2015 and 2016 while counter affidavits were awaited; the matter was thereafter adjourned several times in 2017-2018 on the ground of the petitioner's counsel's illness. On 22 February 2018 a Division Bench (Sudhir Agarwal, J. and Shashi Kant, J.) heard the matter finally. The Court recorded that against the demand raised on the regular electricity bills no objection had been filed and the amount had not been deposited, so recovery proceedings had been initiated and the Section 3 demand notice issued, and that no regular bill was itself under challenge.

REUSABLE CONSTRUCTIONS

1. A demand notice issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 to realise electricity dues on regular bills is nothing but a consequential action informing the consumer to pay; where no regular electricity bill is itself under challenge, there is no provision under which such a demand notice can be independently challenged in a writ petition. **order of 22.2.2018 (para 3)**
2. Where a consumer has a grievance towards electricity dues, the statutory alternative remedy lies before the District Redressal Forum under Clause 5.12 of the U.P. Electricity Supply Code, 2005; that remedy being available, the writ court will decline to interfere and dismiss the petition on the ground of alternative remedy. **order of 22.2.2018 (paras 4-6)**

3. It is the existence of unchallenged regular bills, not the deposit of one bill, that governs; where against the demand raised on the regular bills no objection was filed and the amount was not deposited, recovery proceedings are validly initiated and the consequential recovery demand notice is unassailable in writ. **order of 22.2.2018 (paras 2-3)**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.12

RATIO

Grievance on electricity dues to be pursued before the District Redressal Forum under Clause 5.12; alternative-remedy bar to writ

QUESTION

Whether a writ petition against recovery of electricity dues is maintainable, or whether the consumer must be relegated to the statutory alternative remedy before the District Redressal Forum under Clause 5.12 of the U.P. Electricity Supply Code, 2005?

HOLDING

The consumer must be relegated to the statutory forum. If the petitioner has any grievance towards the electricity dues, he has a statutory alternative remedy before the District Redressal Forum under Clause 5.12 of the Electricity Supply Code, 2005; that remedy being available, the Court found no reason to interfere and dismissed the writ petition on the ground of alternative remedy. **order of 22.2.2018 (paras 4-6)**

EVIDENCE *“If petitioner has any grievance towards electricity dues, he has statutory alternative remedy before District Redressal Forum under Clause 5.12 of Electricity Supply Code, 2005.” order of 22.2.2018 (para 4)*

EVIDENCE *“Since petitioner has statutory alternative remedy, we find no reason to interfere in the matter.” order of 22.2.2018 (para 5)*

EVIDENCE *“Writ petition stands dismissed on the ground of alternative remedy.” order of 22.2.2018 (para 6)*

FLAG Order-sheet spanning 7.5.2015 to 22.2.2018 with no printed page numbers; pins are order dates. The final reasoned order of 22.2.2018 carries internal numbering (paras 1-6).

INTERPLAY · UPGEU1958::3

RATIO

Recovery demand notice as a consequential ministerial step; not independently challengeable where no regular bill is under challenge

QUESTION

Whether a demand notice issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act to recover electricity dues on regular bills is itself amenable to challenge in writ, where no regular electricity bill is under challenge?

HOLDING

No. Where no regular electricity bill is under challenge, the Court found no provision under which the demand notice could be challenged: it is nothing but a consequential action informing the consumer to make payment of the electricity dues pursuant to the regular bills. Against the demand raised on the regular bills no objection had been filed and the amount had not been deposited, so recovery proceedings were validly initiated and the demand notice is unassailable. **order of 22.2.2018 (paras 2-3)**

EVIDENCE *“In the present case no regular electricity bill is under challenge. We do not find any provision under which demand notice could have been challenged which is nothing but a consequential action informing the person concerned to make payment of electricity dues pursuant to regular electricity bills.” order of 22.2.2018 (para 3)*

EVIDENCE *“Dispute relates to electricity dues. It is not in dispute that against demand raised on the regular electricity bills issued to petitioner no objection was filed, amount was also not deposited. Hence recovery proceedings were initiated” order of 22.2.2018 (para 2)*

EVIDENCE *“demand notice under Section 3 of U.P. Government Electrical Undertakings (Recovery of Dues) Act, 1998 was issued by Executive Engineer concerned requiring petitioner to pay the amount by 30th March, 2015” order of 22.2.2018 (para 2)*

FLAG The order names the recovery statute as the 'U.P. Government Electrical Undertakings (Recovery of Dues) Act, 1998'; this is the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 (spine key UPGEU1958). The verbatim evidence quote preserves the order's own wording.

alternative-remedy-relegation A writ against recovery of electricity dues is not entertained where the consumer has a statutory alternative remedy before the District Redressal Forum under Clause 5.12 of the U.P. Electricity Supply Code, 2005; the petitioner is relegated to that forum and the writ dismissed. [order of 22.2.2018 \(paras 4-6\)](#)

recovery-demand-notice-is-consequential-not-independently-challengeable A Section 3 recovery demand notice that merely calls for payment of electricity dues on unchallenged regular bills is a consequential action, not an independently challengeable order; absent a challenge to a regular bill there is no provision under which it can be assailed in writ. [order of 22.2.2018 \(para 3\)](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE CORRECTNESS OF THE ELECTRICITY DUES DEMANDED (RS.3,69,896), INCLUDING THE PETITIONER'S CLAIM THAT HE HAD ALREADY DEPOSITED THE RS.56,960 REQUIRED BY THE BILL DATED 25 FEBRUARY 2015

Not decided; relegated to the statutory alternative remedy before the District Redressal Forum under Clause 5.12 of the Supply Code, 2005, the Court declining to interfere. [order of 22.2.2018 \(paras 4-6\)](#)

RELATED CASES — SEE ALSO

SCJ-1980 — Alternative-remedy relegation - writ declined and the consumer relegated to the statutory remedy; the same relegation principle applied here to Clause 5.12.

SCJ-1981 — Recovery of electricity dues pressed under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 - the same recovery-Act demand-notice provision engaged here.

SCJ-218 — Recovery of electricity dues under the Dues Recovery Act, 1958 (Section 3) - spine sibling on the recovery-demand-notice provision.

SCJ-096 — Billing/dues grievance directed to the Code's statutory grievance forum rather than entertained in writ - cognate to relegation under Clause 5.12 here.